

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JULY 08, 2026
8:30 a.m.

2. KIMBERLY FROCK V. AUSTIN LAWRIE

24FL1187

This matter is before the court on the Respondent's Request for Order (RFO) to modify Spousal Support filed on May 28, 2026. Along with the RFO, the Respondent filed an Income and Expense Declaration. There is no Proof of Service filed with the court to show that the Petitioner was served with the Respondent's filings.

However, the Petitioner did file a Responsive pleading with the court on June 17, 2025, but since there is no Proof of Service that her Response was served on the Respondent, the court did not consider it.

Respondent's RFO seeks to modify the Spousal Support order found in the parties' judgment of dissolution filed May 08, 2025. As the request is for post-judgment modification, an evidentiary hearing must be set for the court to gather and consider the Family Code Sec. 4320 factors.

The court notes that the Judgment calls for the Respondent's obligation to pay Spousal Support to the Petitioner to end with the payment for July 01, 2026. There is no pending request by the Petitioner to change the terms of the judgment regarding Spousal Support. As the Respondent's RFO was filed in late May, the court can only order a reduction of Spousal Support beginning on May 28, 2026, so the Respondent can only gain non-payment for 3 days of May and June 2026.

TENTATIVE RULING #2: THE PARTIES ARE ORDERED TO APPEAR TO SELECT A DATE AND TIME FOR AN EVIDENTIARY HEARING TO ESTABLISH THE F.C. SEC. 4320 FACTORS.